

Manish Kanaujia And 2 Others vs State Of U.P. Thru. Prin. Secy. Home ... on 7 February, 2025

Author: Saurabh Lavania

Bench: Saurabh Lavania

HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH

?Neutral Citation No. - 2025:AHC-LK0:8395

Court No. - 12

Case :- APPLICATION U/S 482 No. - 211 of 2023

Applicant :- Manish Kanaujia And 2 Others

Opposite Party :- State Of U.P. Thru. Prin. Secy. Home Deptt. Lko. And Another

Counsel for Applicant :- Dharmendra Kumar,Rahul Kannoja

Counsel for Opposite Party :- G.A.

Hon'ble Saurabh Lavania,J.

1. Case called out.

2. Despite service of notice upon opposite party no.2- wife of the applicant no.1, as is apparent from the letter of Chief Judicial Magistrate, Lucknow dated 27.01.2023 on record, which is based upon the report of the Sub Inspector of Police Station Bazarkhala, Lucknow dated 25.01.2023, no one has appeared on behalf of the opposite party no.2.

3. In the aforesaid background of the case, the Court proceeded to hear the counsel who are present before this Court for final disposal of the present application.

4. Heard learned counsel for the applicants as well as Shri S.P. Tiwari, learned A.G.A. for the State and perused the material available on record.

5. The present application has been filed seeking following main relief:-

"Wherefore, it is most respectfully prayed that this Hon'ble court may kindly be pleased to allow the application and quash the entire criminal proceeding of Case No-844 of 2015 arising out of impugned summoning order dated 28.3.2015 passed by learned Additional Chief Judicial Magistrate-VIII Court No-32, Lucknow on the charge sheet No-13 dated 13.1.2015 filed in Crime No-181 of 2014 under sections-498-A, 323, 504, 506, 452 Indian Penal Code & Dowry Prohibition Act Police Station- Bajar Khala District-Lucknow, in re- Sate Versus Manish Kanaujia & ors, contained as Annexure No-1 to the petition.

Meanwhile, this Hon'ble court may kindly be pleased to stay the further proceeding of Criminal case No-844 of 2015 in Crime No-181 of 2014 under section- 498-A, 323, 504, 506, 452 IPC & 3/4 D.P. Act pending in the court of ACJM-IV Lucknow, during pending instant petition.

Or this Hon'ble court may kindly be pleased to refer the present matter before mediation and conciliation center of this Hon'ble court for settlement, to secure ends of justice."

6. For the purpose of the relief sought in the present application, it is stated by learned counsel for the applicants that after lodging of the F.I.R, the parties settled the matrimonial dispute and in terms of the settlement arrived between the parties, a petition dissolution of marriage was filed in the Court of Principal Judge, Family Court, Lucknow, under Section 13-B of the Hindu Marriage Act, 1955 (in short 'Act of 1955').

7. It is further stated that perusal of the contents of the photocopy of the certified copy of the plaint annexed at Page Nos. 20 to 23 (Annexure No.4) to the present application, would indicate that the matrimonial dispute between the parties has already been settled including in relation to the pending criminal proceedings, in issue, i.e. Case No. 844 of 2015, arising out of Case Crime No. 181 of 2014 under sections-498-A, 323, 504, 506, 452 I.P.C. and Section 3/4 Dowry Prohibition Act, Police Station- Bajar Khala, District-Lucknow. The referred paras are extracted herein-below:-

"6. That several reconciliations were made by their families & friends but they could not adjust with one another & finally on 6/6/2014 the petitioner no.2 out of her free So will and accord broke the matrimonial home & withdrew herself from the society of the petitioner no.1 and since then she has been living & residing at her parental house in KACHHI COLONY IN MEHNDI GANJ LUCKNOW mentioned herin above and presently she has no desire nor any wish for any union with the husband the parties have not also cohabited since then

7. That further efforts by family member & friends were made of both the families to effect a reconciliation & for resumption of the marital relationship but the same could not become possible owing to the huge differences of their temperaments and as such the married life of the petitioner become impracticable & impossible

8. That at present there is no love & affection or emotional bonds in between the petitioner & if forceful reconciliation is made there is ever chance of dangerous physical & mental painful consequences

9. That the petitioner no 2 states that she and the petitioner nol is living separately since 2 years

10. That both the petitioner had now mutually agreed & decided that there is no reason for the continuance of the marital relationship & thus they have further mutually agreed upon by their own free will for dissolution of their marriage tie and hence this petition

11. That the petitioner no.1 and petitioner no.2 hereto are seprated from each other since 6/6/2014

12. That now the petitioner no.1 and petitioner no.2 both have come to an agreement realizing the irretrievable breakdown of their marriage and have mutually agreed and consented that their marriage be dissolved by a decree of divorced through mutual consent That the true copy of the compromise deed date 29/2/16 is being annexed herewith as ANNEXURE NO.1 to this petition

13. That the petitioner no.1 has agreed to give the divorce, to the petitioner no.2 has 3 agreed to give the divorce to petitioner no.1 and petitioner no.2 has further agreed to withdraw all the cases filled by her against the petitioner no.1& his family member i.e case no.844/2015 crime no.181/2014 u/s 498-a 323,504,506,452 ipc & % dowry prohibition act at p/s bazaar khala.

14. That the petitioner no.2 will also withdraw the case of MAINTAINCE having its suit no.405 Of 2015 u/s 125 cr.pe pending before the court of principal judge family court against petitioner no.! immediately after filling of this petition

15. That the petitioner no. 2 also withdraw the case of domestic voilance u/s 12(1) having its complaint case no..... Of 2015 u/s 12 ACJM-8 against petitioner no.2& his family member this petition pending before the court of iminediately after filling of this petition.

16. That the petitioner no. I will also withdraw the case of section 9 of hindu marriage act pending before the court of principal judge family court against petitioner no.2 immediately after filling of this petition having its No. 1627/2014

17. The parties have decided to take the divorce by mutual consent by their free will & the petitioner no.2 has also agreed to take the custody of her son named Tushar will look after her child in future & the petitioner no.1 will have right to meet his son as and when required after the complete effect of this petition

18. That the petitioner no. 1 is ready to pay a sum of rs 16000((sixteen thousand only) as full & final settlement of her claims including maintainance (past, present & future) of the petitioner no.2 and her son as full & final permanent alimony through Demand - Draft having its No.385509 in the Name of Anju Kannaujia of oriental bank of commerce

19. That the petitioner no. 1 had already handover the entire gifts items mentioned in the compromise deed to petitioner no.2 as full & final permanent alimony

20. That it has been agreed between the parties that the amount of alimony was to be paid at the time of decree of divorce without fail in cash before the court."

8. It is further stated that taking note of this settlement arrived between the parties, the family Court has decreed the Original Suit bearing No. 1738 of 2016 (Manish Kannaujia vs. Smt. Anju Kannaujiya), which was filed under Section 13-B of Act of 195, vide judgment and order dated 11.02.2017, which reads as under:-

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9. It is further stated that the Complaint Case No. 5995 of 2014 instituted by the opposite party no.2 under Section 12 of Domestic Violence Act has also been dismissed for want of prosecution, which also indicates that the parties have settled the dispute amicably. It is lastly stated that in view of the aforesaid, the present criminal proceedings are liable to be quashed.

10. Considering the aforesaid as also the submissions made by learned Counsel for the parties as also the observations made by Apex Court in the case of State of Karnataka Vs. L. Muniswamy and Others, 1977 (2) SCC 699; State of Haryana Vs. Bhajan Lal and Others, 1992 Supp (1) SCC 335; Prashant Bharti Vs. State (NCT of Delhi), (2013) 9 SCC 293; Rajiv Thapar and Ors. Vs. Madan Lal Kapoor, (2013) 3 SCC 330; Ahmad Ali Quraishi and Ors. Vs. State of Uttar Pradesh and Ors. (2020) 13 SCC 435, according to which inherent power under Section 482 Cr.P.C. (akin to Section 528 BNSS, 2023) could be exercised to prevent abuse of process of any Court or otherwise to secure ends of justice, as also the observations made by Apex Court in the case of Ramgopal and others Vs. State of Madhya Pradesh, (2022) 14 SCC 531, Gian Singh Vs. State of Punjab [2012 10 SCC 303], Mohd. Ibrahim Vs. State of U.P., 2022 SCC Online ALL 106, Gold Quest International Ltd. Vs. State of Tamilnadu, 2014 (15) SCC 235, B.S. Joshi Vs. State of Haryana, 2003 (4) SCC 675, Jitendra Raghuvanshi Vs. Babita Raghuvanshi, 2013(4) SCC 58, Madhavarao Jiawajirao Scindia Vs. Sambhajirao Chandrojirao Angre, 1988 1 SCC 692, Nikhil Merchant Vs. C.B.I. and another, 2008(9) SCC 677, Manoj Sharma Vs. State and others, 2008(16) SCC 1, State of M.P. Vs. Laxmi Narayan and others, 2019(5) SCC 688, Narindra Singh and others Vs. State of Punjab and another, (2014) 6 SCC 466, Manoj Kumar and others Vs. State of U.P and others (2008) 8 SCC 781, Union Carbide Corporation and others Vs. Union of India and others (1991) 4 SCC 584, Manohar Lal Sharma Vs. Principal Secretary and others (2014) 2 SCC 532 and Supreme Court Bar Association Vs. Union of India (1998) 4 SCC 409, according to which, in given facts, based upon the settlements between the parties the criminal proceedings can be quashed, as also the nature of dispute/crime, this Court is of the view that the present application is liable to be allowed as chances of ultimate conviction are extremely bleak and hence no useful purpose would be served by allowing the criminal proceedings to continue. Accordingly, present application is allowed. Consequently, the entire criminal proceedings, arising out of Case Crime No. 181 of 2014, quoted above, are hereby quashed qua the applicants.

11. Office/Registry is directed to send the copy of this order to the court concerned through email/fax for necessary compliance.

Order Date :- 7.2.2025 Praveen